

24STCV31987 24STCV31987

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Case Number: 24STCV31987 Hearing Date: June 23, 2026 Dept: 224

Garcia v. Duran

TENTATIVE RULING

The Motion to Be Relieved as Counsel filed by Defendant's counsel Eugene S. Alkana, is GRANTED. Counsel is not relieved until he files proof of service of the signed MC-053 Order.

ANALYSIS

Legal Standards

Counsel states that there has been an irreparable breakdown in the attorney client relationship. There is no opposition to the motion.

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal. App. 4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398.) California Rules of Professional Conduct, rule 1.16(b)(10) provides that a permissive request for withdrawal may be properly granted where an attorney believes that the tribunal will find good cause for withdrawal.

Code of Civil Procedure, section 284(2) permits either the attorney or client, after notice from one to the other, to seek an Order from the Court to change counsel. The counsel seeking relief under 284(2) must first direct to the client a notice of motion and motion to be relieved of counsel on form MC-051. Cal. Rules Court, rule 3.1362(a). Specifically, California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure, section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure, section 284, subdivision (1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

If it is served by mail, it must contain a declaration stating facts showing that the service address is the current residence or business address of the client, meaning it has been confirmed within 30 days before filing the motion to be relieved of

counsel. Cal. Rules Court, rule 3.1362(d). Finally, the proposed order must be prepared on form MC-053, and must be lodged with the court and with the moving papers. Id. at rule 3.1362(e). "After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court." Ibid.

Discussion

Here, as to the merits, the moving attorney has explained that there has been an irreparable breakdown in the attorney client relationship. That is a ground

With respect to procedural requirements, Counsel has complied with California Rules of Court, rule 3.1362 in its entirety. Notice of motion and motion has been filed, along with a declaration and a proposed order for Defendant. Service of the notice and motion was made on Defendant. Service has been made on Plaintiff's counsel. Movant has stated a breakdown of the attorney-client relationship, which is grounds for withdrawal, and the court finds that Plaintiff appears to have abandoned this case, and is not prosecuting it. No trial date has been set, thus Defendant will not be unduly prejudiced at this stage.

Conclusion

The Motion to Be Relieved as Counsel filed by Defendant's counsel Eugene S. Alkana, is GRANTED. Counsel is not relieved until he files proof of service of the signed MC-053 Order.

Movant is to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order.